

Late Night Levy – variation to include Late Night Refreshment Premises

Consultation Responses

Email Responses	
Solicitor representing Greene King Pub Partners.	We are responding on behalf of our client Greene King Pub Partners ('GKPP') to the consultation on the Late Night Levy. The consultation process is, we understand, part of the statutory Late Night Levy regime introduced in 2012 and amended in 2017. GKPP operate 2 premises in the borough- one currently affected by the LNL and the other not. This response is separate to any response you may receive Greene King's managed pub estate in the Borough. Adding Late Night refreshment to the LNL We would support the council's desire to ensure that all businesses operating after midnight are equally treated. On the face of it, that would suggest adding more premises into the LNL scheme would be in line with this. However, the LNL by its very nature, divides businesses between those licensed the those that are not irrespective of their trading into the levy hours. This, in and of itself, is unfair and as such businesses that pay into the local BID, as well as being charged the LNL are currently being required to pay two separate fees based on rateable value of their premises- outside of the rates themselves. You will be aware that for a number of businesses in the hospitality sector, April 2026 is going to be particularly challenging as rate reliefs are clawed back and businesses already on the cusp of serious financial hardship will be expected to find additional revenue to meet this increased tax burdens. For some, it is predicted, this may result in closure. For this reason, we strongly urge the council to consider the validity of retaining the LNL within the Borough during this particularly challenging time for businesses. Continued validity of a late night levy The Government has signalled its intent in the recent Licensing Sprint to put business growth and the economy at the heart of licensing. The recent change to the S.182 Guidance now requires licensing authorities: <i>"1.18 When making licensing decisions, all licensing authorities should consider the need to promote growth and deliver economic benefits"</i> The LNL in and of itself, is a charge on businesses that prevents growth and investment into the businesses themselves. We appreciate that the council is looking to raise revenue, but this additional levy prevents investment and that can affect the profitability of businesses as they need to make hard decisions as to whether to invest or not. You will have noticed that many individual businesses are already making these hard choices by choosing not to open on quieter days and the number of business closures in the sector is on the rise. This in turn reduces income, working hours for staff and the ability for a business to invest. Successful businesses pay more in taxes, rates, National Insurance Contributions and, where relevant, local BIDs. With a significant number of hospitality premises reporting low to no profits, we would strongly urge the Licensing Authority to take this into account when calculating the value of the LNL to the local economy. Exemptions/ Reductions We note the specific exemptions as listed. However, we note that, for example, New Year's Eve is not exempted. This, we suggest, should be revisited if the intention is to retain or expand the LNL. Many premises have some limited hours extensions for New Year's Eve which they may or may not take advantage of. Other premises routinely put TENs in to extend hours. To have one group subject to the levy irrespective of whether they use the later hours on their licence or not, whilst others specifically applying to go into the levy period without having to pay the levy, is iniquitous. Conclusion It is our submission that the LNL that has been in place since 2019 is in fact a drain on businesses and needs to be reconsidered in its entirety given the challenging trading conditions licensed premises find themselves in. The council's ability to raise revenue in a sustainable and long-term way, we submit, comes from having a healthy and thriving hospitality sector that is well invested and growing. As matters stand, the opposite is true and we therefore recommend that the council give serious consideration to scrapping the LNL altogether.
HCA Healthcare	Thank you for the information I trust HCA London #Bridge Hospital and HCA at Guys Hospital as an Healthcare environments where only overnight inpatients will be served between the hours on 00.00 and 06.00 is exempt from any action and levy ?
Solicitor	I hope you are well and thank you for the below notification. I note the proposal confirms that the Levy will apply to businesses that serve hot food or drinks from 00:00 – 06:00. Please could you confirm if this means premises that sell hot food or hot food and hot drinks, and will not apply to premises that only sell hot drinks? I note under section 127 (2A) of the Police Reform and Social Responsibility Act 2011 it confirms that businesses are not liable to pay the Levy if only hot drinks are supplied. I look forward to hearing from you. Kind regards, Paige

Business – Borough & Bankside	The only comment I wish to make is that I support an additional late night levy. London needs to be a 24 hour city like so many other major metropolises. Licensed premises, in order to meet their outgoings, need the ability to trade for as many hours that are feasible and can bring them a return. Ultimately this extra revenue benefits the country as a whole as the revenue from Vat increases. I understand that the cost of monitoring late night operations is an expense which has to be shared by late night operators. It is essential that the public knows that, prolonged hours enjoyed by operators, are safe. The surveillance does entail very unsocial hours for the licensing team. There is no getting away from it that these are at a premium.
3 solicitors	Thanks. For the avoidance of any doubt does that mean that you're proposing to maintain the NYE exemption or remove it? <i>Clarification provided that the existing exemptions, introduced since the LNL was implemented in 2019, remain in effect. This variation seeks to include premises licensed to provide the provision of late-night refreshment between midnight and 6 am.</i>
Online Responses to Survey	
This helps us to understand who we are reaching with our public surveys. Resident 77.8% (7 choices) Licence Holder 11.1% (1 choice) Legal Representative (Licensing) 11.1% (1 choice) Licensing Consultant 0% (0 choices) Other (please specify) 11.1% (1 choice)	
3. Do you agree with the proposal to include late night refreshment premises in the Late Night Levy? 9/9 - Multiple choice - choose one - optional Yes 44.4% (4 choices) No 44.4% (4 choices) Not Sure 11.1% (1 choice)	Most respondents expressed strong concerns that extending the Late Night Levy to late night refreshment premises would have a highly negative impact on businesses, particularly small and independent operators already struggling with high costs and economic pressures There is a common view that the proposal would discourage late-night trading, threaten the viability of venues, and undermine London's reputation and competitiveness as a global city for culture and nightlife Several respondents argued that the financial burden of supporting the night-time economy should not fall on businesses alone, especially when there is no clear evidence that late night refreshment venues are more responsible for issues like waste, noise, or policing than daytime businesses. Some suggested that residential concerns could be better managed through targeted measures such as noise control and public safety patrols, rather than blanket levies. A minority view indicated limited impact and felt it was fair for these premises to contribute but overall, the dominant trend was opposition to the proposal due to concerns about financial strain, business closures, and negative effects on the local night-time economy.
5. Do you have any alternative suggestions for managing the costs of the night-time economy? 8/9 - Long answer - optional	Many respondents questioned the fairness of extending the Late Night Levy to late night refreshment premises, with several suggesting that costs should be targeted at businesses or areas generating the most antisocial behaviour or noise complaints, rather than applying a blanket charge. There was a recurring view that alcohol-led venues should pay more, as they contribute more to cleaning and security costs, while food outlets should face lower charges due to smaller profit margins and their essential role for residents. Some respondents argued that the costs of the night-time economy are not proven to be disproportionate compared to daytime, and should be considered as part of overall borough services rather than separately There were calls for more evidence-based approaches and for local authorities to focus on collaboration and incentives for responsible business practices, rather than imposing restrictive measures. A minority supported the levy or had no alternative suggestions. One respondent questioned whether managing these costs should fall within the council's existing responsibilities.

		Overall, the most common themes were opposition to blanket charges, support for targeted or tiered approaches, and a desire to encourage rather than penalise late night food businesses.																																																									
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6. Age 8/9 - Multiple choice - choose one - optional		7. What is your ethnic background? 7/9 - Multiple choice - choose one - optional																																																									
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12. Is the Gender you identify with the same as the sex you were recorded at birth? 8/9 - Multiple choice - choose one - optional Yes 88.9% (8 choices) No answer 11.1% (1 choice) No 0% (0 choices) Prefer not to say 0% (0 choices)	14. Which of the following best describes your sexual orientation? 6/9 - Multiple choice - choose one - optional Heterosexual/straight 33.3% (3 choices) No answer 33.3% (3 choices) Gay man 22.2% (2 choices) Lesbian/Gay woman 11.1% (1 choice) Bisexual 0% (0 choices) Prefer not to say 0% (0 choices) Other 0% (0 choices)
15. What is your religion or belief? 5/9 - Multiple choice - choose one - optional No religion 55.6% (5 choices) No answer 44.4% (4 choices) Buddhist 0% (0 choices) Christian 0% (0 choices) Hindu 0% (0 choices)	16. Approximately, what is your household income 6/9 - Multiple choice - choose one - optional (The combined income of all the people in your home)? £90,000 or above 33.3% (3 choices) No answer 33.3% (3 choices) £45-59,999 per year 11.1% (1 choice) £75-89,999 per year 11.1% (1 choice) Prefer not to say 11.1% (1 choice) Under £15,000 per year 0% (0 choices)